

25CHCV02341 25CHCV02341

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-08

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The Court has reviewed Plaintiff and Cross-Defendant John Nagle's ex parte application, supporting declaration, the information concerning the petition for writ of mandate, and Cross-Complainant PML, Inc.'s opposition.

Pursuant to Code of Civil Procedure section 166(a), the Court rules on the application without a hearing. The ex parte appearance scheduled for September 8, 2026, is VACATED.

REQUESTED

RELIEF

Plaintiff and Cross-Defendant Nagle requests a 20-day extension, from September 8 through September 28, 2026, to respond to the First Amended Cross-Complaint. Nagle states that a petition for writ of mandate has been filed challenging the Court's August 21, 2026 order overruling Nagle's demurrer and that the requested extension would provide the Court of Appeal additional time to act on the petition and its request for a temporary stay.

EX

PARTE STANDARD

California Rules of Court, rule 3.1202(c) requires an applicant to make an affirmative factual showing, in a declaration containing competent testimony based on personal knowledge, of irreparable harm, immediate danger, or another statutory basis for granting relief ex parte.

An approaching filing deadline may explain why relief is

requested promptly, but it does not, without more, establish irreparable harm or immediate danger warranting ex parte intervention.

ANALYSIS

The application establishes that Nagle's deadline to respond to the First Amended Cross-Complaint is approaching and that the Court of Appeal has not yet acted on the petition's request for a temporary stay. It does not, however, identify any concrete and irreparable harm that will result if Nagle is required to answer while the writ petition remains pending.

The application does not show that filing an answer would moot the writ petition, impair the Court of Appeal's jurisdiction, waive the standing or necessary-party objections previously raised by demurrer, or otherwise prejudice Nagle's ability to pursue appellate relief. The writ's statement that Nagle seeks review "before being required to answer" identifies the procedural sequence Nagle prefers, but does not establish why filing an answer would cause irreparable harm.

The filing of a writ petition and a request for a temporary appellate stay does not itself stay proceedings in this Court. Nothing presented shows that the Court of Appeal has issued a stay, requested preliminary opposition, issued an order to show cause, or otherwise indicated that action on the requested stay is imminent.

The requested 20-day period also is not supported by a factual showing. The application does not explain why 20 days is necessary, why appellate action is reasonably anticipated within that period, or why Nagle cannot answer while continuing to pursue the writ.

Finally, Cross-Complainant represents that it will not request entry of default before September 14, 2026. That representation further undermines the contention that denial of the application will expose Nagle to an immediate adverse consequence.

RULING

Plaintiff and Cross-Defendant Nagle's ex parte application for a 20-day extension of time to respond to the First Amended Cross-Complaint is DENIED.

The application demonstrates an approaching responsive-pleading deadline, but it does not make the affirmative factual showing of irreparable harm, immediate danger, or other statutory basis required by California Rules of Court, rule 3.1202(c). The pendency of the writ petition and appellate stay request, without a showing that filing an answer would moot or materially impair the requested appellate relief, does not establish an ex parte emergency.

The denial is without prejudice to any relief ordered by the Court of Appeal or to a renewed application based upon materially changed circumstances, including action by the Court of Appeal, supported by competent evidence demonstrating an immediate need for relief.

The Court does not extend or otherwise modify the deadline for Nagle to respond to the First Amended Cross-Complaint.

Clerk is directed to give notice.